

CAGE	CUI	COMPANY NAME
99167		Hamilton Sundstrand Corporation

The use of authority 10 U.S.C. 3204(a)(1) is based on:

- ☐ AMC 1. Suitable for competitive acquisition for the second or subsequent time.
- ☐ AMC 2. Suitable for competitive acquisition for the first time.
- ☒ AMC 3. Acquire, for the second or subsequent time, directly from the manufacturer.
- ☐ AMC 4. Acquire, for the first time, directly from the manufacturer.
- ☐ AMC 5. Acquire directly from the sole source contractor, who is not the manufacturer.
- ☐ AMSC A. The Government's right to use data in its possession is questionable. This code is under review and will be updated when the review is complete.
- ☐ AMSC B. This must be acquired from a manufacturing source(s) specified on a source control drawing.
- ☐ AMSC C. This part required engineering source approval by the design control activity in order to maintain the quality of the part.
- ☒ AMSC D. The data needed to acquire this part is not economically available.
- ☐ AMSC H. The Government does not have sufficient, accurate, or legible data to purchase this part from other than the current source. This code is under review and will be updated when the review is complete.
- ☐ AMSC K. This part must be produced from class 1 castings under MIL-STD-2175.
- ☐ AMSC L. The annual buy value of this part falls below the screening threshold established by DoD.
- ☐ AMSC M. Manufacture of this part requires use of master or coordinated tooling.
- ☐ AMSC N. Manufacture of this part requires special test and/or inspection facilities to maintain function or system integrity.
- ☐ AMSC P. The rights to use the data needed to purchase this part from additional source(s) are not owned by the Government and cannot be purchased, developed, or otherwise obtained.
- ☐ AMSC Q. The Government does not have adequate data, lacks rights to data, or both. It is not economical to buy the data or rights to the data.
- ☐ AMSC R. The Government does not own the data or rights to the data needed to purchase this part from another source. It is not economical to procure the data or rights to the data.
- ☐ AMSC S. Acquisition of this item is restricted to Government approved source(s) because the item involves military sensitive technology.
- ☐ AMSC U. The cost to the Government to breakout this part and acquire it competitively has been determined to exceed the projected savings over the life span of the part.
- ☐ AMSC V. This part has been designated a high reliability part. Probability of failure would be unacceptable. The engineering activity has determined that data to define and control reliability limits cannot be obtained.
- ☐ AMSC Y. The design of this part is unstable. Engineering, manufacturing, or performance characteristics indicate that the required design objectives have not been achieved.
- ☐ AMSC Z. This part is a commercial/no-developmental/off-the-shelf item.
- ☒ Other: Drawing 947F213-2 configuration is not available in JEDMICS or MEDALS. No dash -2 configuration available. Letter dated 11/4/10 from HAMILTON SUNSTRAND CAGE: 83843, 99167 states data/data rights will not be provided to the government. Continued refusal to answer requests for data/data rights release (3/16/16, 8/22/16, 2/7/18) have been construed as a negative response to the government's further requests.

NOTE: A technical certification is required for acquisitions over \$13.5 million

8. Efforts to ensure that offers are solicited from as many sources as practicable are:

☒ The acquisition will be synopsisized on or about 11-Aug-2023 and any firm requesting a solicitation copy will be provided one.

☐ A synopsis exception cited in FAR 5.202 applies: (Explain) _____

☐ Manufacturers of similar products identified in the market survey will be solicited.

☐ Dealers of the manufacturers will be solicited.

☐ Other: (Explain) _____

9. I hereby determine that the anticipated cost to the Government will be fair and reasonable. (Explain)

The contracting officer will complete a price analysis. If the proposed dollar amount exceeds the TINA threshold IAW FAR 15.403-4, certified cost or pricing data will be required and a detailed cost analysis will be accomplished. Support from the Defense Contract Management Agency or the Defense Contract Audit Agency may be requested as appropriate to aid in evaluating the proposal.

10. A market survey as defined by FAR 10:

☒ was conducted, and firms indicating an interest in the acquisition will be solicited. Market research efforts, include: Market research, in accordance with FAR Part 10 was conducted by a multi-functional team. This research included inquiries into Haystack, Parts Manufacturer Approvals, Google, Thomas Register and similar item manufacturer's websites. On 22 Aug 23 date, a SSS (FD20302400039) was posted on SAM.gov web site and closed on 29 Aug 23. No vendors indicated interest in the acquisition. No other responses or inquiries were received from any other contractors.

☐ was not conducted due to: _____

11. Additional facts supporting other than full and open competition are:

☒ Based upon the technical certification on file, technical data is not available and cannot be developed to permit full and open competition. The data presently available reflects the minimum needs of the Government.

☐ When FAR 6.302-1 is cited for substantial duplication of costs in the case of a follow-on acquisition as described in 6.302-1(a)(2)(ii)(A), an estimate if the cost to the Government that would be duplicated and how the estimate was derived: _____

☐ When FAR 6.302-1 is cited for unacceptable delays in the case of a follow-on acquisition as described in 6.302-1(a)(2)(ii)(B), describe the unacceptable delays: _____

☒ Other: The Item is AMSC "D" and by definition The Data needed for a competitive solicitation are not physically available and cannot be economically obtained.

12. A listing of sources, if any, indicating an interest in writing in the acquisition are: (if none, state none)

CAGE	COMPANY NAME
NONE	NONE

13. The actions, being taken to overcome barriers to competition before any subsequent acquisition are made: (Explain)

The 422nd SCMS will continue to monitor the marketplace for potential sources.
The Government will continue to synopsize requirements for potential sources
and periodically screen the item for changes in data and source availability

APPROVAL

APPROVAL LEVELS OF THE JUSTIFICATION – FAR 6.304

☒ not exceeding \$750,000... Contracting Officer
☐ over \$750,000 not exceeding \$15,000,000... Competition Advocate
☐ over \$15,000,000 not exceeding \$100,000,000... Head of the Contracting Activity

TECHNICAL/REQUIREMENTS PERSONNEL CERTIFICATION – FAR 6.302-2(c)

Supporting data that is the responsibility of technical or requirements personnel and which form the basis for this justification have been certified as complete and accurate by the cognizant technical/requirements Personnel. Signature of technical/requirements personnel is not required.

DLA COUNSEL AVIATION – DLAD 1.691(e)(3)(i)

DLA Counsel Aviation has reviewed this Form S53 and concluded it creates a legally sufficient justification for restricting competition pursuant to 10 U.S.C. 3204(a)(1) and FAR 6.302-1 for acquisitions for NSNs in the federal supply system at or below \$15 million. **For acquisitions above \$15 million, signature of the Aviation Deputy Chief Counsel is required to document legal sufficiency:**

_____ Name and Title	_____ Signature	_____ Phone	_____ Date
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CONTRACTING OFFICER – FAR 6.303-2(b)(12)

I hereby certify that the information contained in this justification is accurate and complete to the best of my knowledge and belief. If not exceeding \$750,000, this signature serves as the approval.

RONALD D. DRAPER _____ Name and Title	DRAPER, RONALD D. [REDACTED] _____ Signature	[REDACTED] _____ Phone	11-Aug-2023 _____ Date
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COMPETITION ADVOCATE – FAR 6.304(a)(2)

The Competition Advocate for the procuring activity designated pursuant to FAR 6.501 has reviewed and hereby certify that the information contained in this justification is accurate and complete to the best of my knowledge and belief. If over \$750,000, but not exceeding \$15 million this signature serves as the approval.

_____ Name and Title	_____ Signature	_____ Phone	_____ Date
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HEAD OF CONTRACTING ACTIVITY – FAR 6.304(a)(3)

The Head of Contracting Activity has reviewed and approved this Justification for a proposed contract over \$15 million, but not exceeding \$100 million.

_____ Name and Title	_____ Signature	_____ Phone	_____ Date
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